

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

20230930-DK-BUTTERFLY-1, INC., *Complainant*

v.

CMA CGM S.A., *Respondent*.

DOCKET NO. 25-25

Served: August 31, 2026

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

INITIAL DECISION DISMISSING COMPLAINT WITH APPROVED SETTLEMENT AGREEMENT¹

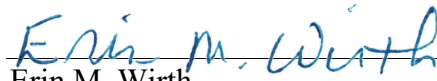
On August 7, 2026, Complainant 20230930-DK-Butterfly-1, Inc., formerly known as Bed Bath & Beyond Inc. (“BBBY”), and Respondent, CMA CGM S.A. (“CMA”), filed a joint motion (“Motion”) seeking approval of a confidential settlement agreement and mutual release with a copy of the confidential agreement. In the two-step process, the parties proposed that their confidential settlement agreement first be approved, and then later that the proceeding be dismissed with prejudice upon the filing of a motion for dismissal by Complainant once the agreed upon settlement amount had been paid.

On August 12, 2026, an Order Granting Joint Motion for Approval of Settlement Agreement was issued. The substantive terms of the settlement agreement were approved and the parties were ordered to file a dismissal motion or joint status report by August 21, 2026.

On August 13, 2026, BBBY filed a Motion to Dismiss Complaint with Prejudice (“Motion”). The motion states: “Under the terms of the Agreement, Complainant agreed to move to dismiss its Complaint with prejudice upon receipt of the agreed settlement funds, which it has received.” Motion at 1.

Upon consideration of the motion, the settlement agreement, and the record, and good cause having been stated, it is hereby:

ORDERED that Complainant’s Motion to Dismiss Complaint with Prejudice be **GRANTED**. The complaint is hereby **DISMISSED WITH PREJUDICE**.


Erin M. Wirth
Chief Administrative Law Judge

¹ This initial decision will become the decision of the Commission in the absence of review by the Commission. Any party may file exceptions to this decision within twenty-two days of the date of service. 46 C.F.R. § 502.227.